

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, June 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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20CV-02661	Spain Air Chemical, Inc. vs J.A. Andrews Farms, LLC, et al.
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Order to Show Cause Re: Dismissal – Notice of Settlement

CONTINUED ON THE COURT'S OWN MOTION TO September 22, 2026, at 8:15 a.m., to allow time for Plaintiffs to enforce the settlement agreement, as described in the declaration of attorney Marshall Whitney, filed June 9, 2026.

21CV-04103	Hugo Villegas vs Ryan Vigil, et al.
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Motion for an Order Permitting Pre-Trial Discovery of Defendant's Financial Condition (Civ. Code § 3295, subd. (c))

Plaintiff's motion for an order permitting discovery of Defendant GSF's financial condition is DENIED.

In determining whether to permit the requested discovery, the court must weigh the evidence submitted by the parties and determine whether it is very likely that the plaintiff

will prevail on the punitive damages claim. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.)

At this time Plaintiff has not met the significant burden of showing a substantial probability of prevailing on his punitive damages claim. Although Plaintiff has provided evidence that Defendant GSF should have pursued eviction proceedings sooner, such evidence is insufficient to support pretrial discovery into Defendant GSF's financial condition under Civil Code section 3295, subdivision (c).

Accordingly, the motion is denied.

25CV-05279

Taci Bass vs Bonander Auto, Truck & Trailer, Inc., et al.

Motion to Consolidate

Defendants' motion to consolidate is DENIED.

Although Plaintiff's claims may arise from her employment with Defendants, the class action and PAGA claims are substantially different than Plaintiff's individual claims. Here, the class and PAGA claims relate to wage and hour violations, while her individual claims are for retaliation for exercise of bereavement leave, failure to prevent discrimination and/or retaliation, and wrongful termination.

The employment relationship alone does not establish a common question of law or fact sufficient to support consolidation as the individual claims do not relate to the alleged wage and hour violations.

Accordingly, the motion to consolidate is denied.
